

Amendment No. 1 to SB1895

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1895

House Bill No. 1814*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 55, Chapter 10, Part 4, is amended by adding the following as a new section:

(a)

(1) Notwithstanding another law to the contrary, if a person is convicted of a violation of § 55-10-401 involving the use of a controlled substance, the person has no prior convictions for a violation of § 55-10-401, and the court determines that it is appropriate to order the person to operate only a motor vehicle equipped with a functioning ignition interlock device under § 55-10-409, then the court may allow the person to agree to receive naltrexone injections at the person's own expense for a period of twelve (12) continuous months in lieu of ordering the person to operate only a motor vehicle equipped with a functioning ignition interlock device.

(2) If a person agrees to receive naltrexone injections for a period of twelve (12) continuous months in lieu of operating only a motor vehicle equipped with a functioning ignition interlock device pursuant to subdivision (a)(1), then the court must include in the sentencing order reporting requirements related to the person's receipt of the naltrexone injections and compliance with treatment recommendations as a condition of the person's probation. A person's failure to receive naltrexone injections as ordered by the court is a ground for revocation of the person's probation, and the court shall notify the department of safety of the

person's noncompliance. If the department receives notice from the court that the person has been noncompliant with the court's order regarding naltrexone injections, then the department shall revoke the person's driver license and order the person to operate only a motor vehicle equipped with a functioning ignition interlock device for a period of twelve (12) continuous months. The conditions of the ignition interlock usage period under § 55-10-409 and § 55-10-417 apply to the person.

(b)

(1) Notwithstanding another law to the contrary, if a person is convicted of a second or subsequent violation of § 55-10-401, each of which involved the use of a controlled substance, and the court determines that it is appropriate to order the person to operate only a motor vehicle equipped with a functioning ignition interlock device under § 55-10-409, then the court shall order the person to receive naltrexone injections at the person's own expense for a period of twelve (12) continuous months in addition to ordering the person to operate only a motor vehicle equipped with a functioning ignition interlock device.

(2) The court's sentencing order must include reporting requirements related to the person's receipt of the naltrexone injections and compliance with treatment recommendations as a condition of the person's probation. A person's failure to receive naltrexone injections as ordered by the court is a ground for revocation of the person's probation.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to offenses committed on or after that date.